

APPROVED

By John Brodie at 2:18 pm, Sep 07, 2022

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION EXPRESSING THE WILL OF THE GOVERNING BODY TO PRIORITIZE AND ADEQUATELY FUND SPECIFIED DOWNTOWN 6TH PENNY TAX MAINTENANCE AND IMPROVEMENT PROJECTS."

WHEREAS, the City of Cheyenne has certain funds available for downtown Cheyenne maintenance and improvement projects through the voluntary one percent (1%) specific purpose sales and use tax ("6th penny tax") approved by the affected citizenry;

WHEREAS, of the downtown 6th penny tax projects authorized to receive funding, the Governing Body has determined that certain projects, as specified herein, should be prioritized for funding in an amount not to exceed one million four hundred sixteen thousand nine hundred twenty-two dollars (\$1,416,922.00);

WHEREAS, the specified projects, and their estimated funding requirements, are as follows and are prioritized in the following order of calendar date:

- A. Projects to be completed by December 31, 2022, at an estimated cost of one hundred ninety-one thousand nine hundred twenty-two dollars (\$191,922.00);
 1. Purchase of commercial Christmas lights for the Downtown Depot Plaza at an estimated cost of ninety-four thousand three hundred two dollars (\$94,302.00);
 2. Purchase eighty-eight (88) trash receptacles for the downtown Cheyenne area at an estimated cost of fifty thousand dollars (\$50,000.00); and
 3. Purchase of one (1) Bobcat articulating loader for snow removal at an estimated cost of forty-seven thousand six hundred twenty dollars (\$47,620.00).
- B. Projects to be completed by June 30, 2023, at an estimated cost of eight hundred eighty thousand dollars (\$880,000.00):
 1. Removal of existing security fencing and installation of 15th Street ornamental security fencing cordoning off the Union Pacific railway beginning approximately at the intersection of 15th Street and O'Neil Avenue, running east and ending at the southeast corner of the Cheyenne Depot building at an estimated cost of five hundred thousand dollars (\$500,000.00);

2. Purchase of two (2) 1-ton plow trucks at an estimated cost of eighty thousand dollars (\$80,000.00);
3. Completion of restroom renovation at the Jack R. Spiker Parking Facility at an estimated cost of one hundred thousand dollars (\$100,000.00); and
4. Acquisition of one (1) storage building for equipment used by the Clean and Safe Division at an estimated cost of two hundred thousand dollars (\$200,000.00).

C. Projects to be completed by December 31, 2023, at an estimated cost of one hundred eighty thousand dollars (\$180,000.00):

1. Purchase of downtown traffic safety devices at an estimated cost of fifteen thousand dollars (\$15,000.00);
2. Acquisition of a new trash containment area for downtown trash dumpsters at an estimated cost of fifty thousand dollars (\$50,000.00);
3. Completion of needed wall painting at the Jack R. Spiker Parking Facility at an estimated cost of seventy-five thousand dollars (\$75,000.00); and
4. Purchase of one (1) digital kiosk for the Downtown Depot Plaza at an estimated cost of forty thousand dollars (\$40,000.00).

D. Projects to be completed by June 30, 2024, at an estimated cost of one hundred sixty-five thousand dollars (\$165,000.00):

1. Purchase of one (1) leaf vacuum and debris sweeper at an estimated cost of fifty thousand dollars (\$50,000.00);
2. Completion of needed parking space painting at the George Cox and Jack R. Spiker parking facilities at an estimated cost of twenty-five thousand dollars (\$25,000.00);
3. Completion of needed parking lot space painting as provided herein at an estimated cost of twenty-five thousand dollars (\$25,000.00);
 - a. 17th Street parking lot, located at the corner of 17th Street and Warren Avenue;

- b. Downtown Depot Plaza lot, located north of Accomplish Beer Company and adjacent to the southside of the plaza; and
 - c. 15th Street parking lot numbers 1, 2 and 3, adjacent to the intersections of 15th Street and Carey, Pioneer, Thomas and O'Neil Avenues.
- 4. Completion of accessible parking space painting throughout downtown area at an estimated cost of fifteen thousand dollars (\$15,000.00); and
 - 5. Purchase of audio-visual equipment for continuing support of Downtown Depot Plaza events at an estimated cost of fifty thousand dollars (\$50,000.00).

WHEREAS, the Director of the Community Recreation and Events Department shall have the authority to reprioritize any project specified herein or substitute a different downtown 6th penny tax maintenance project not specified herein, upon determining that the reprioritization or substitution is in the best interests of the maintenance needs of the downtown area or is necessary to protect the health and safety of the citizens of the city of Cheyenne; and

WHEREAS, the authority provided to the Director of the Community Recreation and Events Department to reprioritize any project or substitute a different downtown projects shall not apply to the removal of existing security fencing and installation of 15th Street ornamental security fencing as specified herein.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the Governing Body through issuance of this Resolution appropriates authorized 6th penny tax funding in an amount not to exceed one million four hundred sixteen thousand nine hundred twenty-two dollars (\$1,416,922.00) for the purposes specified herein;

BE IT FURTHER RESOLVED, that should the Director of the Community Recreation and Events Department exercise his authority to reprioritize or substitute any downtown 6th penny tax maintenance project specified herein, the Director shall submit a written report of this action to the Mayor and the City Council within thirty (30) days of the exercise of such authority; and

BE IT FURTHER RESOLVED, that this resolution shall be effective upon passage and execution by the mayor and city clerk.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____,
2022.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk